

ProManaged IT

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Rosalyn's Beach Hotel

Reference: MSP-PMS-2026-001 | Date: 16 May 2026

YOUR HOTEL. YOUR DATA. YOUR SYSTEM.

This Agreement governs the supply, licensing, and ongoing support of a bespoke Hotel Property Management System built and operated by ProManaged IT exclusively for Rosalyn's Beach Hotel. The PMS is an enterprise-grade hospitality platform covering every operational touchpoint — from online bookings and the restaurant POS to housekeeping, stock management, and real-time analytics.

<i>Demo first. Pay only\nonce you are satisfied.</i>	MWK 4,000,000 One-time. Everything included.	MWK 350,000/month Full support & hosting.
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CONFIDENTIAL — This document is intended solely for the named parties. Unauthorised disclosure is prohibited.

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1. PARTIES TO THIS AGREEMENT

1.1 Service Provider

- **Company:** ProManaged IT
- **Principal:** John-Paul Chirwa
- **Email:** johnpaulchirwa@pro-managed-it.com
- **Phone:** +353 860 081 635
- **Address:** c/o Matuwi Village, Mangochi, Malawi

1.2 Client

- **Hotel:** Rosalyn's Beach Hotel
- **Address:** Matuwi Village, Mangochi, Malawi
- **Phone:** +265 888 226 665
- **Email:** [To be completed]
- **Signatory:** [Authorised Signatory Name]
- **Title:** [Title / Position]

Each party confirms that the individual signing this Agreement has full authority to bind their respective organisation to the terms set out herein. This Agreement is entered into on 16 May 2026.

2. DEFINITIONS

- **"PMS"** The Hotel Property Management System built and hosted by the Provider for the Client, including all modules listed in Section 3.
- **"Setup Fee"** One-time payment of MWK 4,000,000 covering design, development, deployment, configuration, and initial staff training.
- **"Monthly Retainer"** Recurring fee of MWK 350,000/month covering the full ongoing operation of the PMS.
- **"Module"** A self-contained functional area of the PMS (e.g. Booking Engine, POS Till, Kitchen Display).
- **"Business Day"** A day on which the Provider is ordinarily available for support, as communicated to the Client.
- **"Go-Live Date"** The date the PMS is deployed to production and staff training is completed, agreed in writing.
- **"Uptime"** Percentage of time the PMS is accessible, excluding pre-agreed maintenance windows.

3. SCOPE OF THE PROPERTY MANAGEMENT SYSTEM

The PMS is a comprehensive, enterprise-grade hospitality platform engineered specifically for Rosalyn's Beach Hotel. It is not a website plugin or an off-the-shelf product. Its scope and capability is equivalent to commercial PMS solutions such as Opera PMS, Protel, or Semper — which carry licence and hosting costs of USD 200–800/month. The Client receives the same power, purpose-built for their property, at a fraction of the global market rate.

3.1 Modules Included

- **Online Booking Engine:** Guest-facing room booking with rate management, occupancy tiers, availability calendar, and duplicate-prevention logic.
- **Reservations & Folios:** Full booking lifecycle: creation, modification, check-in, check-out, folio charges, group bookings, and cancellations.
- **POS Till (Touchscreen):** Tablet-first point-of-sale for walk-in, dine-in, takeaway, and room service with live order management.
- **Kitchen Display (KDS):** Full-screen real-time kitchen order display with timer colour-coding, bump tracking, and prep-time analytics.
- **Bar Display (BDS):** Real-time bar order management — station-separated, identical architecture to KDS.
- **Coffee Bar (CDS):** Dedicated coffee station order flow and display.
- **Room Service Dashboard:** Room-service order routing, status tracking, and guest folio integration.
- **Housekeeping Management:** Room status board, task assignment, inspection workflow, and front-desk status sync.
- **Stock Management:** Ingredients, recipes, batch tracking, wastage logging, purchase orders, stock counts, and

- per-dish costing.
- **Payments & Invoicing:** Cash, card, and mobile money (Airtel/TNM) processing, VAT calculation, PDF invoicing, and refunds.
- **Conference & Events:** Enquiry management, room allocation, event packages, and conference invoicing.
- **Visitor & Sales Analytics:** Website visitor tracking, conversion funnel, traffic sources, bounce rate, and marketing insights.
- **F&B Analytics:** Revenue by category, top sellers, station performance, void analysis, and recommendations.
- **Admin Panel:** Role-based access, user management, audit logs, cache management, and CMS for site content.
- **WhatsApp Notifications:** Automated guest messaging for booking confirmation, reminders, and check-out summaries.
- **Offline Capability:** POS and KDS continue operating during internet outages; orders sync automatically on reconnection.
- **API Layer:** Authenticated API with rate limiting and structured JSON responses for all major operations.
- **Security Layer:** CSRF protection, prepared statements (SQL injection prevention), CSP headers, and OWASP Top 10 compliance.

4. FEES & PAYMENT TERMS

4.1 Fee Schedule

Setup Fee (one-time)	MWK 4,000,000	<i>Paid in three instalments — see 4.2</i>
Monthly Retainer	MWK 350,000	<i>Per calendar month from Go-Live</i>

4.2 Setup Fee Payment Schedule — Demo First, Pay When Happy

The Provider takes the risk. The Client will see a working, fully configured system before committing the majority of the setup fee. The payment schedule is structured as follows:

- 25% — MWK 1,000,000 — due upon signing this Agreement. This covers initial configuration and development work.
- 50% — MWK 2,000,000 — due only after the Client has reviewed the completed system on a staging environment and confirmed satisfaction in writing. No payment is required if the Client is not satisfied at this stage — the Agreement may be reviewed or concluded.
- 25% — MWK 1,000,000 — due on the Go-Live Date, when the system is live and staff training is complete.

The 50% milestone payment is triggered by the Client's written approval of the staged system. The Provider will not invoice for this amount until the Client confirms the system meets their requirements.

4.3 Monthly Retainer

- Commences on the Go-Live Date and is billed on the 1st of each calendar month.
- A pro-rated amount applies for any partial month at go-live.
- Fee reviews may occur annually with 60 days written notice before any increase takes effect.
- Non-payment beyond 30 days of invoice date entitles the Provider to suspend system access until payment is received.

4.4 Late Payment

Invoices unpaid after 30 days accrue interest at 2% per month on the outstanding balance. The Provider may suspend service after 45 days of non-payment without further liability.

All fees are in Malawian Kwacha (MWK) and exclusive of applicable taxes. Payment is due within 7 calendar days of invoice.

5. MONTHLY RETAINER — WHAT IS COVERED

The Monthly Retainer of MWK 350,000 covers the complete ongoing operation of the PMS with no hidden charges.

- Web hosting for the PMS and public-facing hotel website.
- SSL certificate management and renewal.
- Bug fixes — defects in existing functionality resolved at no additional charge.
- Security patches and dependency updates.
- Minor improvements and refinements to existing features.
- Daily automated database backups.
- Email and WhatsApp support from the Provider.
- Staff training on existing system features.
- Monthly system health check.

6. SERVICE LEVELS

Severity	Response Target	Definition
Critical — System Down	4 hours	Core system inaccessible, affecting live operations
High — Major Feature Broken	8 hours	POS, bookings, or payments non-functional
Medium — Partial Degradation	2 Business Days	Non-critical feature unavailable
Low — Cosmetic / Minor	5 Business Days	Visual issue or minor discrepancy

Response targets are measured from the time a support request is received. The Provider targets 99.5% monthly uptime, excluding scheduled maintenance windows and events beyond the Provider's reasonable control.

7. DATA OWNERSHIP & PRIVACY

- All data entered into the PMS — guest records, booking data, payment records, operational data — is and remains the sole property of the Client.
- The Provider acts as a data processor only. The Client is the data controller under applicable law.
- Client data will not be sold, shared, or disclosed to any third party without written consent, except as required by law.
- On termination, the Provider supplies a full database export in MySQL/CSV format within 14 days at no charge.
- The Provider maintains encrypted backups and implements industry-standard access controls.
- The Client is responsible for compliance with applicable Malawian data protection regulations.

8. INTELLECTUAL PROPERTY

- The PMS software — source code, design assets, database schemas, and documentation — is the intellectual property of the Provider unless otherwise agreed in writing.
- The Client receives a non-exclusive, non-transferable licence to use the PMS for the duration of this Agreement.
- The Client may not copy, resell, sublicense, or distribute the PMS or any component without prior written consent from the Provider.

The PMS platform may be adapted for other hotel clients. The Client does not acquire exclusivity over the platform — only over their own data and bespoke customisations unique to their property.

9. CONFIDENTIALITY

- Both parties agree to keep the terms of this Agreement, and all technical and business information exchanged, strictly confidential.
- Confidential information may not be disclosed without written consent, except as required by law or to professional advisors under equivalent obligations.
- This obligation survives termination for five (5) years.

10. TERM & TERMINATION

10.1 Initial Term

This Agreement commences on the date of signing and continues for an initial term of twelve (12) months from the Go-Live Date. During the Initial Term, neither party may terminate except as provided in Section 10.3.

10.2 Renewal

After the Initial Term, the Agreement renews month-to-month unless either party gives 30 days written notice of termination.

10.3 Termination for Cause

- Either party may terminate immediately if the other commits a material breach not remedied within 21 days of written notice.
- The Provider may terminate immediately if the Client fails to pay within 45 days of invoice date.
- The Client may terminate immediately if the Provider cannot restore the system after a critical outage lasting more than 72 consecutive hours.

10.4 Effect of Termination

- Client access ceases on the last day of the paid period.
- The Provider supplies a full data export within 14 days per Section 7.
- All outstanding invoices become immediately due and payable.
- The setup fee is non-refundable once the staged system has been approved by the Client.

11. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law:

- The Provider's total aggregate liability shall not exceed the total Monthly Retainer fees paid in the 12 months preceding the event.
- The Provider is not liable for indirect, consequential, special, or punitive loss including loss of revenue, profit, data, or goodwill.
- The Provider is not liable for failures caused by: (a) Client misuse; (b) third-party services outside the Provider's control; (c) force majeure events including load-shedding.

Nothing in this Agreement limits liability for death, personal injury, or fraud caused by the Provider's gross negligence or wilful misconduct.

12. CLIENT RESPONSIBILITIES

- Designate a named System Administrator responsible for staff access management and first-line support.
- Ensure staff complete go-live training before using the system operationally.
- Not share admin credentials; notify the Provider promptly of any suspected security incident.
- Not attempt to access, modify, or copy the system source code, database, or server configuration.
- Provide accurate business information required for system configuration (room names, prices, menu items, VAT number, etc.).
- Maintain a stable internet connection; the PMS requires internet access for full functionality.

13. GOVERNING LAW & DISPUTE RESOLUTION

This Agreement is governed by the laws of the Republic of Malawi. Disputes shall first be referred to good-faith negotiation. If unresolved within 30 days, disputes shall be referred to mediation by an agreed neutral mediator in Malawi before any court proceedings commence.

14. GENERAL PROVISIONS

- Entire Agreement: This document constitutes the entire agreement and supersedes all prior discussions and

representations.

- Amendments: No amendment is valid unless made in writing and signed by both parties.
- Waiver: Failure to enforce any provision does not constitute a waiver of that provision.
- Severability: If any provision is found unenforceable, the remainder continues in full force.
- Notices: All formal notices must be in writing, delivered by email with read receipt or registered post.
- Force Majeure: Neither party is liable for failures caused by events beyond reasonable control.

15. EXECUTION — SIGNATURES

By signing below, each party confirms they have read, understood, and agree to be bound by all terms of this Agreement.

SERVICE PROVIDER

Signature

John-Paul Chirwa
Director — ProManaged IT

CLIENT

Signature

[Authorised Signatory Name]
[Title / Position], Rosalyn's Beach Hotel

Date: _____

Date: _____

Witness (optional but recommended)

Witness Name: _____ Signature: _____ Date: _____

Occupation: _____ National ID / Passport No: _____

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SCHEDULE A — SYSTEM MODULES & DELIVERY

All modules are included in the Setup Fee and covered by the Monthly Retainer at no additional cost. Items marked (*) require third-party API credentials to be supplied by the Client.

Module	Included	Notes
Online Booking Engine	Yes	Guest-facing, fully responsive
Room Management & Availability	Yes	Real-time calendar
Rate Plans & Pricing Rules	Yes	Multi-tier, seasonal rates
Check-in / Check-out Processing	Yes	
Folio Management & Charges	Yes	Room, F&B, conference
POS Till (Touchscreen)	Yes	Tablet-optimised
Kitchen Display (KDS)	Yes	Real-time, offline-capable
Bar Display (BDS)	Yes	
Coffee Bar Display (CDS)	Yes	
Room Service Dashboard	Yes	Folio-integrated
Housekeeping Board	Yes	
Stock & Recipe Management	Yes	Ingredients, batches, costing
Conference & Events	Yes	Enquiry to invoice workflow
Payments (Cash / Card / MoMo)	Yes	
Invoicing & Credit Notes (PDF)	Yes	VAT-compliant
WhatsApp Notifications	Yes (*)	Client supplies WhatsApp API key
Email Notifications	Yes (*)	Client supplies SMTP credentials
Visitor & Sales Analytics	Yes	
F&B Analytics	Yes	
Admin Panel & Role Management	Yes	
Audit Logs	Yes	
Offline Capability (POS/KDS)	Yes	Service Worker + auto-sync
API Layer	Yes	API key authenticated
Security (CSRF, CSP, PDO)	Yes	OWASP Top 10 compliant

(*) WhatsApp and email notification services require separate third-party accounts. Any costs charged by those providers are outside this Agreement and are the Client's sole responsibility.